5/8/2023 11:10 AM
22CV39627

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF CLACKAMAS

TYLER A. LOFALL, Plaintiff, v. COUNTY OF CLACKAMAS, DA REBECCA PORTLOCK, WEST LINN POLICE DEPARTMENT, CLACKAMAS COUNTY POLICE DEPARTMENT, WEST LINN POLICE OFFICER DANA GUNNERSON, WEST LINN POLICE OFFICER CAITLIN BLYTH, CLACKAMAS COUNTY JAIL, Defendants.	Case No. 22CV39627 **DEFENDANTS WEST LINN POLICE DEPARTMENT, DANA GUNNARSON AND CATLIN BLYTH'S ANSWER AND AFFIRMATIVE DEFENSES TO PLAINTIFF'S THIRD AMENDED COMPLAINT** **Prayer Amount: $2,418,100.00** **Filing Fee—Exempt Pursuant to ORS 20.140** **CLAIM NOT SUBJECT TO MANDATORY ARBITRATION** **Jury Trial Requested**

For their Answer to Plaintiff's Third Amended Complaint, Defendants West Linn Police Department, Dana Gunnarson and Catlin Blyth (hereinafter "West Linn Defendants") deny each and every allegation of Plaintiff's Third Amended Complaint except as expressly admitted in this Answer:

1.

West Linn Defendants admit that the City of West Linn is a municipality organized and existing under the laws of the State of Oregon and the West Linn Police Department is a subordinate internal department of the City of West Linn.

2.

West Linn Defendants admit that during the relevant times alleged in the Third Amended Complaint, Officer Dana Gunnarson (hereinafter "Officer Gunnarson") and Officer Catlin Blyth

LEWIS, NWEZE & STABLER
Not a Partnership
Employed by the Legal Division of CIS
15875 Boones Ferry Rd., #1469
Lake Oswego, OR 97035
Telephone: (503) 763-3875

(hereinafter "Officer Blyth") were employed as police officers for the City of West Linn Police Department, acting within the course and scope of their employment.

3.

West Linn Defendants admit that the "ex-girlfriend" referenced in Plaintiff's Third-Amended Complaint is Massiel Galla (hereinafter "Ms. Galla"); that during the relevant times alleged in the Third-Amended Complaint, Plaintiff resided at Ms. Galla's residence in West Linn, Oregon; and that during, or around, the relevant times alleged in the Third-Amended Complaint, Plaintiff and Ms. Galla were engaged in an intimate relationship and/or cohabitating, meeting the definition of "family and household members" under ORS 135.230(4).

4.

West Linn Defendants admit that on March 6, 2022, Plaintiff and Ms. Galla were engaged in a physical altercation outside of Ms. Galla's residence; that during the course of the altercation, two of Ms. Galla's children, one of whom was a minor (and a boyfriend of one of the children), arrived at the residence and observed the altercation.

5.

West Linn Defendants admit that Ms. Galla's children, and the boyfriend, witnessed Plaintiff grab Ms. Galla from behind and hold on to her with Plaintiff's arms wrapped around Ms. Galla's shoulders; that Ms. Galla struggled against Plaintiff's hold; and that Ms. Galla attempted to free herself by attempting to spray Plaintiff with a garden hose she was holding.

6.

West Linn Defendants admit that one of Ms. Galla's children took pictures of the altercation, which depict Plaintiff holding Ms. Galla as described; and that Plaintiff released Ms. Galla in response to one of the children, or the boyfriend, yelling "take your hands off her."

7.

West Linn Defendants admit that after witnessing the altercation, the children reported the incident to the West Linn Police Department.

LEWIS, NWEZE & STABLER
Not a Partnership
Employed by the Legal Division of CIS
15875 Boones Ferry Rd., #1469
Lake Oswego, OR 97035
Telephone: (503) 763-3875

8.

West Linn Defendants admit that Officer Gunnarson investigated the report from Ms. Galla's children (and boyfriend) and viewed the photos taken of the altercation.

9.

West Linn Defendants admit that Officer Gunnarson explained to the children that Ms. Galla would have to initiate a report herself in order for the investigation to proceed; and that a short time later, Ms. Galla called Officer Gunnarson and explained the altercation between herself and Plaintiff.

10.

West Linn Defendants admit that Ms. Galla told Officer Gunnarson that Plaintiff grabbed her from behind with both of his arms and in response, Ms. Galla began screaming and demanding that Plaintiff let her go; that Ms. Galla told Officer Gunnarson that she (Ms. Galla) unsuccessfully tried spraying Plaintiff with the garden hose in an effort to free herself; and that Plaintiff released her from his grasp once her children arrived at the residence.

11.

West Linn Defendants admit that Officer Gunnarson developed probable cause to arrest Plaintiff for multiple crimes under Oregon law based on the information and evidence provided to her.

12.

West Linn Defendants admit that Officers Gunnarson and Blyth went to Ms. Galla's residence and contacted Plaintiff.

13.

West Linn Defendants admit that Plaintiff admitted to subjecting Ms. Galla to unwanted physical and offensive contact; that Plaintiff admitted he "bear hugged" Ms. Galla from behind "to get her to stop" and noted "that is the most violent I (Plaintiff) have ever been with her."

/ / /

LEWIS, NWEZE & STABLER
Not a Partnership
Employed by the Legal Division of CIS
15875 Boones Ferry Rd., #1469
Lake Oswego, OR 97035
Telephone: (503) 763-3875

14.

West Linn Defendants admit that Officer Gunnarson arrested Plaintiff for the crime of Harassment (ORS 165.065) based on the probable cause developed during her investigation; that Plaintiff was taken into custody; and that Officer Blyth transported Plaintiff to the Clackamas County Jail, where Plaintiff was lodged.

15.

West Linn Defendants admit that on March 7, 2022, the State of Oregon, through the Clackamas County District Attorney's Office, charged Plaintiff with the misdemeanor crime of Harassment in the criminal case of *State of Oregon v. Tyler Allen Lofall*, 22CR10908; that Plaintiff was arraigned the same day; and that Clackamas County Circuit Court Judge Katherine Weber denied Plaintiff's release from custody and set bail at $10,000.

16.

West Linn Defendants admit that Plaintiff remained in custody at the Clackamas County Jail, pursuant to judicial orders, until the court ordered his release on April 12, 2022.

17.

West Linn Defendants admit that on May 6, 2022, Clackamas County Circuit Court Judge Cody Weston revoked Plaintiff's release and issued a warrant for Plaintiff's arrest based on Plaintiff repeatedly violating the conditions of his release; that Plaintiff was taken back into custody and arraigned on May 6, 2022, before being released from custody on May 10, 2022, after posting bail.

18.

West Linn Defendants admit that on July 14, 2022, the criminal case in 22CR10908 was dismissed pursuant to the State of Oregon's motion that dismissal was in the best interests of justice.

/ / /

/ / /

LEWIS, NWEZE & STABLER
Not a Partnership
Employed by the Legal Division of CIS
15875 Boones Ferry Rd., #1469
Lake Oswego, OR 97035
Telephone: (503) 763-3875

19.

Except as expressly admitted above, West Linn Defendants deny each and every remaining allegation of Plaintiff's Third Amended Complaint, either because they are fictitious, fabricated, or untrue, because they are opinions or conclusions of law rather than allegations of fact, because they are directed toward other parties and/or defendants and no response is required, or because Defendants lack sufficient information or belief as to their accuracy at this time.

AFFIRMATIVE DEFENSES

BY WAY OF FURTHER ANSWER AND FOR A FIRST AFFIRMATIVE DEFENSE, West Linn Defendants allege:

20.

Defendants Dana Gunnarson and Catlin Blyth are entitled to qualified immunity.

BY WAY OF FURTHER ANSWER AND FOR A SECOND AFFIRMATIVE DEFENSE, West Linn Defendants allege:

21.

Probable cause existed for Plaintiff's arrest based on the witness and victim statements, photo evidence, and Plaintiff's admissions.

BY WAY OF FURTHER ANSWER AND FOR A THIRD AFFIRMATIVE DEFENSE, West Linn Defendants allege:

22.

Officers Gunnarson and Blyth were required by ORS 133.055(2)(a) to arrest Plaintiff.

BY WAY OF FURTHER ANSWER AND FOR A FOURTH AFFIRMATIVE DEFENSE, West Linn Defendants allege:

/ / /

/ / /

/ / /

LEWIS, NWEZE & STABLER
Not a Partnership
Employed by the Legal Division of CIS
15875 Boones Ferry Rd., #1469
Lake Oswego, OR 97035
Telephone: (503) 763-3875

23.

Probable cause existed for Plaintiff's arrest as a matter of law pursuant to a judicial finding of probable cause, Plaintiff's arraignment, and the filing of a District Attorney's Information charging Plaintiff with a criminal offense.

BY WAY OF FURTHER ANSWER AND FOR A FIFTH AFFIRMATIVE DEFENSE, West Linn Defendants allege:

24.

West Linn Defendants are entitled to judicial or quasi-judicial immunity on any claim related to Plaintiff's detention or continued detention because Plaintiff's confinement was pursuant to judicial orders in *State of Oregon v. Tyler Allen Lofall*, Clackamas County Circuit Court No. 22CR10908.

BY WAY OF FURTHER ANSWER AND FOR A SIXTH AFFIRMATIVE DEFENSE, West Linn Defendants allege:

25.

The criminal prosecution of Plaintiff, resulting in his detention and confinement, was independently conducted by the Clackamas County District Attorney's Office and West Linn Defendants are not liable for the actions of the Clackamas County District Attorney's Office.

BY WAY OF FURTHER ANSWER AND FOR A SEVENTH AFFIRMATIVE DEFENSE, West Linn Defendants allege:

26.

Plaintiff failed to state claims upon which relief can be granted.

BY WAY OF FURTHER ANSWER AND FOR AN EIGHTH AFFIRMATIVE DEFENSE, West Linn Defendants allege:

27.

Plaintiff's claim of "Intentional Interference with Contractual / Economic Relationship" as alleged in "Count Seven" has been dismissed from this proceeding with prejudice pursuant to

LEWIS, NWEZE & STABLER
Not a Partnership
Employed by the Legal Division of CIS
15875 Boones Ferry Rd., #1469
Lake Oswego, OR 97035
Telephone: (503) 763-3875

the Court's opinion and order dated February 27, 2023 and April 19, 2023, respectively. Plaintiff is precluded from litigating this claim in its entirety against West Linn Defendants.

BY WAY OF FURTHER ANSWER AND FOR A NINTH AFFIRMATIVE DEFENSE, West Linn Defendants allege:

28.

Plaintiff failed to mitigate his damages.

BY WAY OF FURTHER ANSWER AND FOR A TENTH AFFIRMATIVE DEFENSE, West Linn Defendants allege:

29.

To the extent Plaintiff's Third Amended Complaint alleges state law tort claims, any such claims are subject to the conditions, limitations, and immunities contained in the Oregon Tort Claims Act, ORS 30.265, et. seq., including but not limited to, the limitations on damages contained in ORS 30.272 and the notice requirement contained in ORS 33.275.

WHEREFORE, having fully answered Plaintiff's Third Amended Complaint, West Linn Defendants pray that the same be dismissed, they be awarded their costs and disbursements incurred herein, and such other relief as the court deems just and equitable.

West Linn Defendants demand trial by jury.

DATED this 8th day of May 2023.

LEWIS, NWEZE & STABLER

By: s/ *William E. Stabler*

William E. Stabler, OSB No. 124624
wstabler@cisoregon.org
David C. Lewis, OSB No. 953348
dlewis@cisoregon.org
Of Attorneys for Defendants West Linn Police Department, Dana Gunnarson and Catlin Blyth

Trial Attorney: William E. Stabler, OSB No. 124624

LEWIS, NWEZE & STABLER
Not a Partnership
Employed by the Legal Division of CIS
15875 Boones Ferry Rd., #1469
Lake Oswego, OR 97035
Telephone: (503) 763-3875

CERTIFICATE OF SERVICE

I hereby certify that on the 8th day of May 2023, I served the foregoing **DEFENDANTS WEST LINN POLICE DEPARTMENT, DANA GUNNARSON AND CATLIN BLYTH'S ANSWER AND AFFIRMATIVE DEFENSES TO PLAINTIFF'S THIRD AMENDED COMPLAINT** the following parties by the method(s) indicated below:

Tyler Allen Lofall tyleralofall@gmail.com 6880 NW 271st Avenue Hillsboro, OR 97124 Plaintiff Pro Se	☒ First-class mail, postage prepaid ☐ Facsimile, pursuant to ORCP 9 F ☐ Hand Delivery ☐ Overnight courier, delivery prepaid ☐ E-mail, pursuant to ORCP 9 G ☒ E-mail copy, as courtesy only
Eliot D. Thompson eliot.thompson@doj.state.or.us Senior Assistant Attorney General Oregon Dept. of Justice 1162 Court Street NE Salem, OR 97301-4096 Attorney for Clackamas County District Attorney Rebecca Portlock	☒ First-class mail, postage prepaid ☐ Facsimile, pursuant to ORCP 9 F ☐ Hand Delivery ☐ Overnight courier, delivery prepaid ☐ E-mail, pursuant to ORCP 9 G ☒ E-mail copy, as courtesy only

Electronic Service, via Odyssey File & Serve, pursuant to UTCR 21.100:

Tyler Allen Lofall
tyleralofall@gmail.com
Plaintiff Pro Se

s/ *William E. Stabler*
William E. Stabler, OSB No. 124624
Of Attorneys for Defendants West Linn Police Department, Dana Gunnarson and Catlin Blyth

LEWIS, NWEZE & STABLER
Not a Partnership
Employed by the Legal Division of CIS
15875 Boones Ferry Rd., #1469
Lake Oswego, OR 97035
Telephone: (503) 763-3875